



J&A Number: 23-0356

**JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. Contracting Activity.

Naval Air Warfare Center Weapons Division (NAWCWD) China Lake, CA

2. Description of the Action Being Approved.

This Justification and Approval (J&A) authorizes and approves on a sole source basis a contract for a five year Cost Plus Fixed Fee (CPFF) Indefinite Delivery Indefinite Quantity (IDIQ) on an Other than Full and Open Competition basis to Lockheed Martin (LM) (CAGE 04939), Orlando, FL, in the estimated amount of \$88,085,961. This action will allow LM to perform Advanced Technology Insertion & Integration Support for NAWCWD.

3. Description of Supplies/Services.

This follow-on contract will provide design and development studies and engineering services to develop and apply new technologies to Lockheed Martin (LM) Proprietary Systems. This is to ensure battle space dominance utilizing a baseline of systems developed and produced by LM, including: Joint Air to Surface Standoff Missile (JASSM), Long Range Anti-Ship Missile (LRASM), Joint Air to Ground Missile (JAGM), and Hellfire. Specific technology development focus areas associated with the aforementioned LM platforms, includes, but is not limited to; Line of Sight/Non-Line of Sight (LOS, N-LOS) technologies for seekers, multimode seekers, tube-launched Unmanned Aircraft Systems (UAS), autonomous weapons employment and precision targeting, aircraft-weapon integration, and similar applications. Additional tasking will include technology demonstration efforts, product improvement initiatives, technology insertion, transition activities, integration of various warfare systems, mission analysis, mission architecture, participation in Concept of Operations (CONOPS) development, military utility analysis and more traditional engineering analysis and studies as they relate to LM product lines in support of NAWCWD and its customers. The NAWCWD Targeting/Kinetic Effects product directorate, D0AH200, will be the technical lead agent for this contract. The proposed contract will have a five year ordering period.

Estimated Dollar Value

	FY24-29 Total
[Redacted]	\$88.1M
Total	\$88.1M

4. Statutory Authority Permitting Other Than Full and Open Competition.

10 U.S.C. 3204(a)(1), Only one responsible source and no other supplies or services will satisfy agency requirements.

5. Rationale Justifying Use of Cited Statutory Authority.

LM is the designer and developer of the aforementioned systems and retains the Technical Data Packages (TDPs). The Navy did not procure the drawings that would allow another source to develop upgrades to these systems. Therefore, LM, as the only manufacturer, is the only company with the historical knowledge, weapons specific expertise, and data rights related to the product lines identified in paragraph 3. On 21 November 2023, LM declined to sell the TDPs for the product lines mentioned above.

As a result, in accordance with FAR 6.302-1(a)(2)(ii)(B), the Government has determined that award to another source would result in unacceptable delays. LM is the only qualified source that can upgrade these LM product lines, which are currently used by the U.S. Navy. The Government does not possess the technical data required to support ongoing changes in engineering development and design resulting from applying new technology to systems developed and produced by LM. To develop alternative sources is not considered practical and would result in unacceptable programmatic delays. In order to arrive at a similar capability, an alternate source would have to develop and deploy a separate line of weapon systems to the fleet, which is conservatively estimated to adversely delay mission capabilities for a minimum of five years in order to allow time for the Program Office to solicit, compete and/or reconfigure each of the current six LM weapon systems in order for a new source to fulfill the requirements. This estimate is based on program data produced by the current ongoing efforts. The delay to find and qualify another source would significantly impact the US Navy and the mission to sustain and deliver current and future weapons capabilities that keep pace with evolving threats in addition to adding capability for Naval superiority. With increasing global threats, any significant delay in such capabilities would be highly detrimental to our warfighters and our nation.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

In accordance with DFARS PGI 206.302-1(d), a request for information (RFI) for this requirement was posted via the SAM.gov website on 11 September 2023, with a capability submission date of 26 September 2023. No capabilities statements were received.

In accordance with FAR 5.201(b)(1), this requirement was synopsized via the SAM.gov website on 13 November 2023. No responses or inquiries have been received at this point. Any future responses will be evaluated by the Contracting Officer.

No additional market research was conducted because it is not practicable, for the reasons discussed in Paragraph 5 above, for any company other than LM to provide the required supplies and services.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition.

For the reasons set forth in Paragraph 5, NAWCWD has no plans at this time to compete future contracts for the types of supplies/services covered by this document. If another potential source emerges, NAWCWD will assess whether competition for future requirements is feasible.

As this is a follow-on for supplies and services previously awarded on a non-competitive basis, in accordance with DFARS PGI 206.304(a)(S-70)(i), the prior J&A was provided to the approval authority for review. Approval of this J&A signifies the approval authority has made the determination required by DFARS PGI 206.304(a)(S-70)(ii).